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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ERICA CONYERS,

Plaintiff,

Index No.: 30967/18

**VERIFIED COMPLAINT**

-against-

LD No.: 2018-071610

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, NEW YORK CITY DEPARTMENT OF  
CORRECTIONS, and Police Officers "ORTIZ"  
Shield No. 7142, and "JOHN DOE" NO. 1 and  
Corrections Officer "JOHN DOE," No. 1, whose names  
are unknown to Plaintiff,

Defendants.  
-----X

The Plaintiff, by her attorneys, the LAW OFFICES OF ANDREW J. SPINNELL, LLC,  
complaining of the Defendants, respectfully alleges as follows upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff, ERICA CONYERS, resided at the  
time of the instant occurrence in the County Bronx, City and State of New York, specifically at  
3094 Villa Avenue, Apt. 6, Bronx, New York.

2. At all times hereinafter mentioned, Defendant CITY OF NEW YORK (hereinafter  
"CITY"), was and still is a municipal corporation organized and existing under and by virtue of the  
laws of the State of New York with its principal place of business located at City Hall and/or One  
Centre Street, New York, New York.

3. At all times hereinafter mentioned, Defendant NEW YORK CITY POLICE  
DEPARTMENT (hereinafter "NYPD") was and is a department of Defendant CITY with its main  
office located at 1 Police Plaza, New York, New York, and which has assigned at the time of the  
occurrences set forth herein, certain Police Officers, including, but not limited to, Defendant

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Police Officers ORTIZ and JOHN DOE No. 1 to the 52<sup>nd</sup> Precinct at 8016 Webster Avenue, Bronx, New York.

4. At all times hereinafter mentioned, Defendant NEW YORK DEPARTMENT OF CORRECTIONS (hereinafter "DOCS") was and is a department of Defendant CITY with its main office located at 60 Hudson St., Room 719, New York, New York 10013.

5. At all times hereinafter mentioned Defendant Police Officer ORTIZ, Shield No.: 7142, was and is a resident of the State of New York and was and is an employee of Defendants NYPD and CITY who was assigned to the 52<sup>nd</sup> Precinct at the time of the occurrences alleged herein.

6. At all times hereinafter mentioned, Defendant Police Officer JOHN DOE NO.: 1, whose name and shield number is unknown to Plaintiff, was and still is a resident of the State of New York, and was and still is employed by Defendants NYPD and CITY and who was assigned at the time of the occurrences set forth hereunder at the 52<sup>nd</sup> Precinct.

7. At all times hereinafter mentioned, Defendant Correction Officer JOHN DOE NO.: 2, whose name and shield number is unknown to Plaintiff, was and still is a resident of the State of New York, and was and still is employed by Defendants DOCS and CITY.

### **FACTS OF THE ACTION**

8. On or about July 19, 2017, non-party Braila Baptiste (hereinafter "Baptiste") resided at 3094 Villa Avenue, Fourth Floor, Bronx, New York, the same building where the Plaintiff resides.

9. On or about July 17, 2017, Plaintiff, through the window of her second floor apartment, and Baptiste, through the window of her fourth floor apartment, had a verbal altercation and dispute with Baptiste's playing music in her apartment at an unreasonably loud volume.

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10. On or about July 17, 2017, Baptiste called 911 to falsely report that Plaintiff attempted to assault her, despite Plaintiff's never having left her apartment that day. The responding NYPD Police Officers investigated Baptiste's allegations, found them to be false and not warranting a police response and left Plaintiff's residence after approximately a 15 minute investigation, which included interviewing Plaintiff.

11. On or about July 17, 2017, Plaintiff called the Administration for Children Services (hereinafter "ACS") to report that Baptiste, who had, at that time, six children living in her apartment, was placing the children in harm's way through her ongoing physical and verbal abuse of the children, and the verbal abuse she directed at Plaintiff.

12. On or about July 19, 2017, Plaintiff and Baptiste again, had an ongoing verbal altercation, with Baptiste threatening to kill Plaintiff or have her husband, known to Plaintiff as "Gordo", kill Plaintiff.

13. On or about July 19, 2017, at 9:00 p.m., two ACS workers responded to Plaintiff's telephone call regarding Baptiste and knocked on Plaintiff's door. The ACS workers inquired of Plaintiff why she reported Baptiste, to which Plaintiff advised the ACS workers that Baptiste abused cocaine, verbally abused her children, and physically abused her children—abuse that Plaintiff had personally observed.

14. After speaking with Plaintiff for approximately five (5) minutes, the two ACS workers went to Baptiste's apartment and knocked on her door. This caused "Gordo", the husband or significant other of Baptiste to vacate the apartment through a window and use the fire escape to reach the ground, which Plaintiff and her minor daughter, who were in Plaintiff's apartment, personally observed.

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15. Plaintiff notified the two ACS workers who were outside the building at this time, that “Gordo” was not permitted in the building because of an Order of Protection that was in place against him, and that he had just escaped by going down the building’s fire escape.

16. A third ACS worker had remained in the motor vehicle parked outside the subject building while the two other Workers went into the building to interview Plaintiff and inspect Baptiste’s apartment. The third ACS worker confirmed that “Gordo” had escaped the premises by way of the building’s fire escape.

17. Approximately 15-20 minutes after the ACS workers left the premises, “Gordo” returned to the building and Plaintiff could hear him screaming in the common hallway that he was going to kill Plaintiff, and then “Gordo” began to attempt to break down the entry door to the Plaintiff’s apartment by repeatedly kicking same while continuing to shout that he would kill Plaintiff.

18. Within several minutes of “Gordo’s” commencing his verbal assault on Plaintiff and his kicking Plaintiff’s apartment door, Baptiste also began to attempt to physically break down said door and verbally assault Plaintiff by threatening to kill her.

19. Plaintiff then called 911 on July 19, 2017, while she braced her body against the apartment door to prevent it from collapsing because it was not firmly secured to its frame, and she was concerned that “Gordo” would break into the apartment and harm her, her 16-year-old minor daughter, and her domestic partner, Herb Weitz, who is 83 years old.

20. As a result of the Plaintiff’s heightened fear of “Gordo’s” breaking into the apartment and causing her and her family bodily harm, or worse, death, it was difficult for Plaintiff to provide the 911 dispatcher with her full address and the adjacent cross streets to her building, which the dispatcher requested.

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21. However, after several minutes, Plaintiff provided the dispatcher with her full address and cross streets and placed the telephone to the door so that the dispatcher could hear “Gordo’s” threats to Plaintiff, which the dispatcher acknowledged to Plaintiff his having heard.

22. During this same period of time Baptiste also called 911 to falsely report that Plaintiff had allegedly menaced her and her family with a knife.

23. Between the time when the ACS workers arrived at the premises at on or about 9:00 p.m., and the 911 call, Plaintiff had not left her apartment except for the instance when she went outside to report to the three ACS workers that “Gordo” was in the building in violation of the Order of Protection was in place against him, but he had escaped by going down the fire escape, making it impossible for Plaintiff to have menaced Baptiste with a knife during that period.

24. After approximately 10-12 minutes after Plaintiff made her 911 call, Defendant NYPD arrived at the Premises with approximately 12-15 uniformed Police Officers, including Defendant ORTIZ and JOHN DOE No. 1, but other Police Officers going to Baptiste’s apartment while Defendant Police Officers ORTIZ and JOHN DOE No.1 went to Plaintiff’s apartment.

25. Plaintiff opened her door to the NYPD police officers, thanked them for arriving because “Gordo” and Baptiste were attempting to break into her apartment and harm her and her family, but surprisingly Plaintiff was then immediately arrested by Defendant Police Officer ORTIZ without probable cause despite the fact Plaintiff was not engaged in any criminal action prior to or at the time of her arrest.

26. Plaintiff inquired of Defendant Police Officer ORTIZ why she was being arrested, and Defendant Police Officer ORTIZ responded “we have been here before, put your hands behind your back”, to which Plaintiff responded that she was now the Complainant in the 911 call and that she was the wrong person to arrest.

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27. Defendant Police Officer ORTIZ did not verbally respond to Plaintiff's protestations, and when Plaintiff asked him again why she was being arrested, Defendant Police Officer ORTIZ responded that she would find out at the Precinct.

28. Defendant Police Officer ORTIZ would not let Plaintiff advise her minor, 16 year-old daughter, nor her 83 year-old domestic partner, who were in the bedroom of Plaintiff's apartment, that she was being arrested prior to her being physically escorted from the apartment and being placed in Defendant NYPD's police cruiser.

29. At the 52<sup>nd</sup> Precinct, Plaintiff was fingerprinted, photographed, and placed in a cell and held while still handcuffed for approximately 3-4 hours before being transferred to Central Booking.

30. On or about July 20, 2018, at approximately 3:00 a.m., Plaintiff was first advised by Defendant NYPD at the Precinct that she was being arrested and charged with menacing Baptiste and her daughter with a knife

31. During her time at the 52<sup>nd</sup> Precinct, Plaintiff advised the NYPD Police Officers there, including Defendant Police Officer ORTIZ, that she required seizure medication, but they refused to let Plaintiff retrieve her personal medication at her home or provide her with alternative medication, or permit her to receive medical attention despite her repeatedly telling the said Police Officers that she did not feel well and was sick.

32. While at the 52<sup>nd</sup> Precinct, Plaintiff began to show signs of an oncoming seizure such as drooling and shaking, but still was denied medical treatment by the NYPD Police Officers at the 52<sup>nd</sup> Precinct.

33. Plaintiff was then handcuffed, shackled, and transferred to Central Booking where she was fingerprinted and photographed a second time, and placed in a holding cell.

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34. Plaintiff advised the Defendant Correction Officers at Central Booking that she suffered from a seizure disorder, that she was not feeling well, and required her seizure medication.

35. Notwithstanding that Plaintiff told various Defendant Correction Officers, including Defendant Correction Officer JOHN DOE No. 1, at Central Booking that she suffered from seizures and required her seizure medication, no Defendant Correction Officer, including Defendant Correction Officer JOHN DOE No. 1, granted her request, causing Plaintiff to suffer a seizure at Central Booking, which could have been avoided if she had been given her seizure medication.

36. After she suffered the seizure, Plaintiff was provided by Defendant Correction Officers, whom she does not know their identities, with some kind of seizure medication, but not her own prescription for same.

37. Plaintiff was arraigned at Central Booking and released on her own recognizance about 2:00-3:00 p.m. on July 20, 2018.

38. When Plaintiff returned to her apartment at 3094 Villa Avenue, Apt. 6, Bronx, New York, Baptiste called 911 to report that Plaintiff had returned to the premises so that she could be arrested again as a result of an Order of Protection that Baptiste had obtained against Plaintiff.

39. Defendant Police Officers and Defendant NYPD responded to Baptiste's 911 call, by coming to the building and interviewing Plaintiff, but they did not arrest Plaintiff in response to that Complaint.

40. However, on July 29, 2018, Plaintiff was arrested by Defendant NYPD Police Officers as a result of another false report made by Baptiste, in which she claimed that Plaintiff, again, assaulted her.

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41. Since Plaintiff's false arrest and the issuance of the Order of Protection to Baptiste upon spurious grounds, Plaintiff has been arrested more than once again as a result of Baptiste's falsely reporting to the NYPD that Plaintiff violated the Order of Protection that she had against Plaintiff.

42. On or about August 17, 2017, a Notice of Claim was properly served on Plaintiff's behalf on Defendant CITY within 90 days after the causes of action accrued, and prior to the commencement of this action.

43. A municipal hearing of Plaintiff was held pursuant to GML §50-h on March 20, 2018.

44. More than 30 days have elapsed since the Notice of Claim was served, and Defendant CITY has refused to pay or adjust the Plaintiff's claims.

**AS AN FOR A FIRST CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR FALSE ARREST  
AGAINST DEFENDANT POLICE OFFICERS AND DEFENDANT CITY**

45. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs hereof numbered "1" through "43" hereof, with the same force and effect as if set forth fully at length herein.

46. On July 19, 2017, at approximately 10:00-10:30 p.m., notwithstanding Plaintiff's denial of any wrongdoing and despite the arresting Defendant Police Officer ORTIZ's not having probable cause that Plaintiff had committed a crime, nor of being aware of the true facts and circumstances existing at that time that would warrant a prudent and reasonable police officer to believe that a crime had been committed, Defendant Police Officer ORTIZ placed Plaintiff in

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handcuffs and falsely arrested her and transferred her to the 52<sup>nd</sup> Precinct of the New York Police Department, and then later had her transferred to Central Booking, all without probable cause or justification as aforesaid.

47. Plaintiff was the Complainant and invited, Defendant responding Police Officer ORTIZ to her 911 call into her apartment, and Defendant Police Officer ORTIZ, without speaking with Baptiste to ascertain if Plaintiff had engaged in any conduct that would lead a reasonably prudent Police Officer in like circumstances to believe that Plaintiff was guilty of the crime of menacing, which she was eventually charged with several hours later, immediately arrested Plaintiff stating "[W]e've been here before, put your hands behind your back".

48. As a result of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdiction of all lower courts.

49. The conduct of Defendant Police Officer ORTIZ was so grossly negligent, wanton, and malicious, and in violation of the public trust that an award of punitive damages should be made to Plaintiff in a sum that exceeds the jurisdiction of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF  
CONYERS FOR FALSE IMPRISONMENT AGAINST DEFENDANT POLICE,  
OFFICER ORTIZ AND DEFENDANTS NYPD, DOCS AND CITY**

50. Plaintiff repeats, reiterates, and realleges each allegation set forth above in Paragraphs "1" through "49" hereof with the same full force and effect as set forth at length herein.

51. On July 19, 2017, at approximately 10:00-10:30 p.m., notwithstanding Plaintiff's denial of any wrongdoing and despite arresting Defendant Police Officer ORTIZ's not being aware of the true facts and circumstances existing at that time that would warrant a prudent and reasonable Police Officer to believe that a crime had been committed, and not having probable

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cause of same, and after Defendant Police Officer ORTIZ having falsely arrested Plaintiff and having taken her to the 52<sup>nd</sup> Precinct of the New York Police Department, Plaintiff was incarcerated and falsely imprisoned in a holding cell at the 52<sup>nd</sup> Precinct for approximately 3-4 hours without probable cause or justification and against her will.

52. On July 20, 2017, in the early morning, Plaintiff was transferred from the 52<sup>nd</sup> Precinct to Central Booking where she was again incarcerated in a holding cell against her will and falsely imprisoned for approximately 8-10 hours, notwithstanding her denial of any wrongdoing, and finally released from the custody of Defendants CITY, NYPD, and DOCS on July 20, 2017, at approximately 3:00 p.m.

53. By reason of the foregoing, Plaintiff was falsely imprisoned for approximately 18 hours and deprived of her liberty and civil rights, and was subjected to humiliation, loss of reputation, social embarrassment, and bodily injuries by Defendants CITY, NYPD, and DOCS, and Defendant Correction Officers, and Defendant Police Officer ORTIZ, including causing Plaintiff to suffer a seizure because she was willfully deprived of being given access to her medically prescribed seizure medication despite Plaintiff's repeated requests for same.

54. As a result of the aforesaid conduct of all of the Defendants, Plaintiff has sustained damages in a sum which exceeds the jurisdiction of all lower courts.

55. The conduct of Defendant Police Officers ORTIZ and JOHN DOE No. 1 and Defendant Corrections Officers, including Correction Officer JOHN DOE No. 1, while acting in their official capacity as agents and employees of Defendant CITY, Defendant NYPD, and Defendant DOCS, were so grossly negligent, wanton, and malicious, and in violation of the public trust, that an award of punitive damages should be made to the Plaintiff in a sum that exceeds the jurisdiction of all lower courts.

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**AS AND FOR A THIRD CAUSE OF ACTION ON  
BEHALF OF PLAINTIFF FOR NEGLIGENCE AGAINST DEFENDANTS  
POLICE OFFICERS AND CORRECTIONS OFFICERS AND CITY**

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs “1” through “55” hereof with the same full force and effect as if set forth at length herein.

57. At all times relevant herein, Defendant CITY, Defendant NYPD, and Defendant DOCS owed a duty of care to Plaintiff.

58. At all times hereinafter mentioned, Defendant Police Officers ORTIZ and JOHN DOE No. 1 and Defendant Correction Officers, including Correction Officer JOHN DOE No. 1, as agents and employees of the municipal Defendants, also owed a duty of care to Plaintiff.

59. At all times hereinafter mentioned, Defendant Police Officer ORTIZ and JOHN DOE No. 1 and Defendant Correction Officers, including Correction Officer JOHN DOE No. 1 were acting within the scope of their employment with the municipal Defendants, and, therefore the municipal Defendants City, NYPD, and DOCS are vicariously liable for the actions of said individual Defendants Police Officers and Correction Officers under the doctrine of respondeat superior.

60. At all times hereinafter mentioned, the acts committed by the municipal Defendants and its agents and employees, Defendants Police Officers ORTIZ and JOHN DOE No. 1 and Defendant Corrections Officers, and Correction Officer JOHN DOE No. 1, complained of by Plaintiff hereinabove, constituted a breach of said the municipal Defendants’ aforesaid duty of care to Plaintiff in that said Defendants negligently and grossly negligently failed and refused to follow proper police procedures by, *inter alia*, not reading Plaintiff her *Miranda* rights before arresting her, lacking probable cause to arrest Plaintiff, negligently investigating and determining

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the probative value of the evidence used to arrest Plaintiff in that no reasonable Police Officer would have concluded that a crime had been committed, in arresting Plaintiff and then detaining and falsely imprisoning her for approximately 18 hours, an excessive amount of time, and allowing Plaintiff to have a seizure through their willfully denying Plaintiff her prescription seizure medication without justification and in violation of federal and state law.

61. At all times hereinafter mentioned, by undertaking the aforesaid acts against Plaintiff as complained of hereinabove, the conduct of the municipal Defendants and the individual Defendant Police Officers and Correction Officers was the proximate cause of the damages alleged by the said Plaintiff hereinabove.

62. As a result of the foregoing conduct and acts of the municipal Defendants, and the individual Defendant Police Officers and Correction Officers, Plaintiff suffered serious bodily and emotional injuries and economic injuries as aforesaid.

63. As a result of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdiction of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS  
AGAINST DEFENDANT POLICE OFFICERS AND CORRECTIONS OFFICERS**

64. Plaintiffs repeat, reiterate, and reallege each and every allegation set forth in Paragraphs "1" through "63" hereof, with the same force and effect as if set forth fully at length herein.

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65. At all times relevant herein, the aforesaid acts undertaken by Defendant Police Officers and Correction Officers complained of by Plaintiff, were so outrageous as to shock the conscience of a person of reasonable sensibilities and of the Court.

66. While in the custody of Defendant Police Officers Ortiz and John Doe No. 1, at the 52<sup>nd</sup> Precinct, Plaintiff was intentionally deprived on her seizure medication and medical treatment in violation of NYPD Patrol Guide Section 210-04, despite numerous requests by Plaintiff to be provided with said medication and medical treatment, and after having been transferred to Central Booking, Plaintiff continued to be intentionally deprived of her necessary medication and medical treatment by Defendant Police Officers and Defendant Correction Officers, which caused the Plaintiff to suffer a potential life-threatening seizure.

67. The foregoing extreme and outrageous conduct of said Defendant Police Officers and Defendant Corrections Officers was done intentionally, maliciously, and/or recklessly with knowledge that it would cause severe mental distress to Plaintiff and has done same to said Plaintiff.

68. The foregoing conduct of Defendant Police Officers and Correction Officers did in fact cause severe mental distress and injury to the Plaintiff.

69. The aforesaid conduct by Defendant Police Officers and Correction Officers was so wanton and malicious that an award of punitive damages should be made to Plaintiff in an amount that exceeds the jurisdiction of all lower courts.

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**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF  
FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AGAINST  
DEFENDANTS POLICE OFFICERS AND CORRECTION OFFICERS AND CITY**

70. Plaintiffs repeat, reiterate, and reallege each and every allegation set forth in Paragraphs “1” through “69” hereof, with the same force and effect as if set forth fully at length herein.

71. At all times relevant herein, Defendant Police Officers and Correction Officers and Defendants CITY, NYPD, and DOCS owed a duty of care to the Plaintiff, while having assumed physical custody of her, to protect her from reasonably foreseeable harm, including providing her with necessary medical care.

72. At all times relevant herein, the acts committed by Defendant Police Officers and Correction Officers and Defendants CITY, NYPD, and DOCS and complained of by Plaintiff hereinabove, constituted a breach of Defendant CITY’s aforesaid duty of care to Plaintiff in that said Defendant Police Officers and Correction Officers negligently and grossly negligently failed and refused to follow proper police procedures in their conducting themselves in the hereinabove described unprofessional manner, which resulted, *inter alia*, in Plaintiff’s having suffered a seizure as a result of Defendants’ failing to provide her with necessary medical treatment and seizure medication, even after Plaintiff suffered a seizure, in Defendants’ failing to transport Plaintiff to a medical facility to be treated and evaluated.

73. Plaintiff was in the zone of danger at the time that the aforesaid acts complained of by Plaintiff were committed by all of said Defendants.

74. As a result of the foregoing conduct and acts of the Defendant Police Officers and Correction Officers and Defendants CITY, NYPD, and DOCS, Plaintiff suffered severe mental distress.

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75. By reason of the foregoing, Plaintiff has suffered damages in a sum that exceeds the jurisdiction of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS  
ON BEHALF OF PLAINTIFF FOR VIOLATIONS OF  
HER CIVIL RIGHTS**

76. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in Paragraphs "1" through "75" hereof, with the same force and effect as if set forth fully at length herein.

77. On July 19, 2017, Plaintiff was falsely arrested by Defendant Police Officer ORTIZ, and was taken into the custody of Defendant NYPD without probable cause or justification by Defendant Police Officer ORTIZ, and against her will, notwithstanding her denial of any wrongdoing.

78. Defendant Police Officer ORTIZ deliberately, willfully, and maliciously arrested Plaintiff without just cause or provocation and intentionally inflicted severe mental and emotional distress and severe permanent bodily injuries upon said Plaintiff without any justification, and without Plaintiff's consent, and thereby violated said Plaintiff's civil rights guaranteed by 42 U.S.C. Sec. 1983, and by the Fourth, Fifth, Sixth, and, Fourteenth Amendments of the Constitution of the United States, and by the Constitution of the State of New York.

79. At all times hereinabove described, Plaintiff was falsely imprisoned by Defendant Police Officers and Correction Officers, including Defendant Police Officers ORTIZ and John Doe No. 1, and held by force and against her will, notwithstanding her denial of any wrongdoing; as said Defendants deliberately, willfully and maliciously confined Plaintiff without just cause or provocation and intentionally inflicted severe mental and emotional distress upon Plaintiff; and without Plaintiff's consent, which caused her to not be able to obtain proper medical treatment and

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necessary prescription seizure medication for her seizure disorder and as a result suffered a seizure while in custody because she was denied medical treatment and medication by Defendants, and Defendants thereby violated Plaintiff's civil rights guaranteed by 42 U.S.C. Sec. 1983, and by the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States, and by the Constitution of the State of New York.

80. By reason of the foregoing, Plaintiff was falsely arrested, detained, falsely imprisoned, handcuffed, maliciously prosecuted, and deprived of her liberty and civil rights interests by Defendant Police Officers and Correction Officers, including Defendant Police Officer ORTIZ, and John Doe No. 1 as a result Plaintiff was subjected to nightmares, sleepless nights, loss of work opportunities, loss of reputation, great humiliation, and social embarrassment, anxiety, stress, hypertension, nausea, and degradation.

81. At all times relevant hereto, the aforesaid acts complained of by Plaintiff herein were committed by Defendant Police Officers and Correction Officers, including Defendant Police Officers ORTIZ and John Doe No. 1 and Correction Officer John Doe No. 1, and were undertaken by said Defendants, while acting in the scope of their employment as agents, servants and employees of the Defendants CITY, NYPD, and DOCS.

82. Each and all of the acts of said Defendant Police Officers and Correction Officers, including Defendant Police Officer ORTIZ, were undertaken by said Defendants, and each of them, not as individuals, but under color and pretense of the statutes, ordinances, regulations, customs, usages and policy of the State and City of New York, and under the authority of their employment by Defendants CITY, NYPD, and DOCS.

83. That by reason of the above acts and/or omissions of Defendant Police Officers and Correction Officers including Correction Officer John Doe No. 1, and Defendant Police Officers

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ORTIZ and John Doe No.1, Plaintiff was forced to undergo physical pain and suffering, emotional distress, damage to personality, humiliation, damage to reputation, embarrassment, nightmares, and the inability to sleep which rendered her sick, sore, lame and disabled.

84. As a result of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdiction of all lower courts.

85. The aforesaid actions of Defendant Police Officers and Correction Officers, including Correction Officer John Doe No. 1, Defendant Police Officers ORTIZ and John Doe No. 1, were so wanton and malicious and in violation of the public trust that an award of punitive damages should be assessed against all of the Defendants pursuant to 42 U.S.C. §1983 in a sum that exceeds the jurisdiction of all lower courts.

86. Under the doctrine of respondeat superior, Defendant CITY, NYPD, and DOCS are vicariously liable for the aforesaid acts of Defendant Police Officers ORTIZ, and John Doe No. 1 and Defendant Corrections Officers--including John Doe No. 1.

87. By reason of the foregoing, Plaintiff demands an award of attorney's fees in an amount to be determined at the time of trial pursuant to 42 U.S.C. §1988.

**AS AND FOR AN SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS  
ON BEHALF OF PLAINTIFF FOR MALICIOUS PROSECUTION**

88. Plaintiff repeats, reiterates, and realleges each and every allegation in paragraphs "1" through "87" with the same full force and effect as if more fully set forth at length herein.

89. On July 19, 2017, Plaintiff was falsely arrested by the Defendant CITY and Defendant Police Officer ORTIZ, and was taken into the custody of the NYPD without probable

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cause or justification by said Defendants, and against her will, notwithstanding her denial of any wrongdoing.

90. As a result of the actions of Defendant CITY and Defendant Police Officers ORTIZ and John Doe No. 1, Plaintiff was transferred from the 52<sup>nd</sup> Precinct to Central Booking, where she was again incarcerated in a holding cell against her will and falsely imprisoned for another several hours, notwithstanding her denial of any wrongdoing, before being released from the custody of Defendant CITY on July 20, 2017.

91. A criminal proceeding was then commenced by Defendant CITY against Plaintiff in the Criminal Court of the City of New York in the matter of "People v. Erica Pugh", Docket No. 2017BX029024 on the charges of menacing.

92. Defendant CITY and Defendant Police Officer ORTIZ, were the actual and proximate cause of Plaintiff's wrongful arrest, detention, indictments, prosecutions, and resulting damages.

93. Despite there being no probable cause to arrest Plaintiff and to initiate a criminal proceeding against her, Defendant CITY and its agents, servants, and/or employees continued the false criminal proceeding against Plaintiff.

94. The criminal proceeding commenced against Plaintiff is without probable cause, and was instituted and has continued with malice until it was or will be dismissed.

95. By reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdiction of all lower courts

96. The conduct of Defendant Police Officers including Ortiz and John Doe No. 1 was

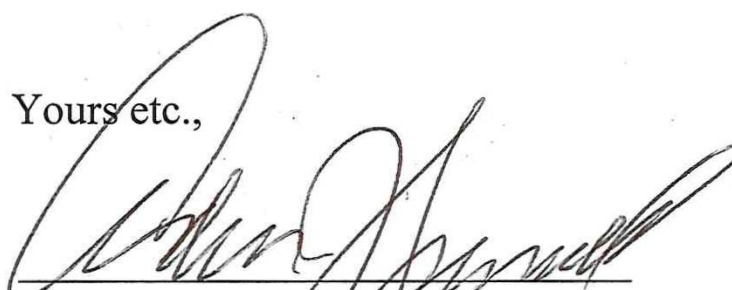
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so malicious that an award of punitive damages is warranted to Plaintiff.

WHEREFORE, Plaintiff demands judgment against all Defendants, both jointly and severally, in a sum that exceeds the jurisdiction of all lower courts, and an award of punitive damages with costs and disbursements and attorneys fees, both jointly and severally, together with such other further relief as is just and proper.

Dated: New York, New York  
November 26, 2018

Yours etc.,



LAW OFFICES OF  
ANDREW J. SPINNELL, LLC  
*Attorneys for Plaintiff*  
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**TO: ZACHARY CARTER, CORPORATION COUNSEL**  
*Attorneys for Defendants*  
198 East 161<sup>st</sup> Street  
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LD #2018-071610  
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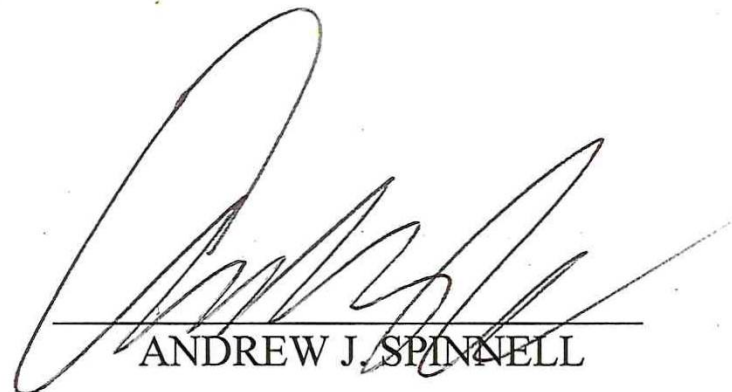
**ATTORNEY VERIFICATION**

STATE OF NEW YORK       )  
                                      ) s.s. :  
COUNTY OF NEW YORK )

I, ANDREW J. SPINNELL, affirms as follows under penalty of perjury:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing **COMPLAINT**; the same is true of my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this Verification is made by me and not by the Plaintiff is on the ground that the Plaintiff do not reside in the same county in which I maintain my office.

Dated:           New York, New York  
                  November 26, 2018

  
\_\_\_\_\_  
ANDREW J. SPINNELL